HILCHOT HANUKKAH — SHULHAN ARUKH

Where to Place the Menorah: Doorway, Window or Table?

Hilchot Hanukkah | Siman 671

Dayan Daniel Kada · Thursday Night Halacha · Shiur 2 of 7 Shulḥan Arukh, Oraḥ Ḥayim 671:3–7

Review of Shiur 1

- **What is forbidden on Hanukah** from the strict law: **fasting** and **eulogies**. Women also have the **custom of not doing burdensome work** in the first half hour after lighting.
- **The four aspects of Hanukah** and how they are commemorated: 1. **The military victory**: Hallel and the tefillot of Hanukah. 2. **The oil**: the menorah. 3. **The miracle of Yehudit**, daughter of Yoḥanan: dairy foods. 4. **The inauguration of the altar**: the Torah reading of the Nesi'im. The altar was meant to be inaugurated on 25 Kislev, and Hashem gave Kislev "another Hanukah."
- **Siman 671:1–2:** the mitzvah is so important that even a poor person must obtain at least one light per night. **Sephardim** light **one menorah per household** so it is clear which night it is. **Ashkenazim** (Rema) have each person light, adding a light each night.
- Children who come home with their own menorah may light it, but **in a different part of the house**.

A question at the start: may Ashkenazim place everyone's menorahs right next to each other? **The Rabbi:** even for Ashkenazim they should not be right next to each other; each should be in its own place, "to make it very clear" which night it is.

Tonight's focus is "very, very practical": **where** you light, **how high**, and what to do **if you live in a flat**.

Seif 3: One Candle With Two Wicks

נר שיש לו שני פיות, עולה לו בשביל שנים. *A lamp with two spouts counts as two lights.*

The Mishnah Berurah clarifies: this is **not** a Havdalah candle. A Havdalah candle has several wicks but makes **one big flame**, and everyone agrees that is a single light. We are speaking about a candle with **two wicks on either side, producing two distinct and separate flames**.

For what purpose does it count as two? The halacha accepts it for **both**:

Purpose	Example
Mehadrin: adding a light each night	On the second night, one candle with two distinct wicks counts as the night's two lights
Two separate obligations under one roof	Two people living together who are **completely financially independent** count as two households, each obliged to light. One lights the left wick, the other the right. (What counts as a "household" comes in later chapters.)

"I don't know how practical that is," the Rabbi added, "but that's the halacha."

Seif 4: A Bowl of Oil With Many Wicks, and the Problem of a Bonfire

Reminder: you don't need a menorah. Even for the very highest level of the mitzvah, a row of eight wax candles is enough.

The case: it is the eighth night and I have no menorah, so I fill a bowl with oil and set eight wicks around its rim. Does that work?

Setup	Status
Covered with a vessel, restricting the air	**Each wick counts** as a separate light
Open to the air, the flames merging	**Does not even count as one light**

Why not even one? Because it becomes a **מדורה**, a bonfire. The mitzvah is a **נר**, a flame. "If I light a bonfire on Hanukah, can I make a berachah? Does that constitute the mitzvah? No." A bonfire does not fulfil the mitzvah at all.

In practice: one bowl with many wicks works **as long as the wicks are separate and you can clearly see eight distinct flames**. If they join up, it does not work.

Why menorahs are made in a straight line

"You'll never find a circular menorah. Why can't you do a circular menorah? Eight branches, nice and round...?"

Because of this halacha it became customary **not** to arrange the lights in a circle, so there is never even the perception of one large fire. A straight row keeps the flames clearly distinct.

The Rema: separate lamps and wax candles

- Separate **lamps** (flames, not electric) are fine, since each is distinct.
- With **wax candles**, take care that they **do not melt into each other**. If they stick together they become one big flame, the problem of a bonfire.

Summary of Seif 3–4: one candle can serve as two lights if it has two distinct flames; a bowl with many wicks works if the flames stay separate; whatever the fuel, the flames must be distinct, which is why menorahs are not round.

The Big Question: Where Do You Put the Menorah?

Three questions to answer: 1. **Where?** Inside or outside, the window, the front door, the table? 2. **How high?** What is the minimum and the maximum? 3. **Which side** of the doorway?

"This halacha, as you can imagine, has changed a lot over the centuries, and we'll see why."

Seif 5: The Location

נר חנוכה מניחו על פתח הבית הסמוך לרשות הרבים מבחוץ. ואם יש חצר לפני הבית, מניחו על פתח החצר. *Place the Hanukah light at the entrance of the house that adjoins the public domain, on the outside. If there is a courtyard in front of the house, place it at the entrance of the courtyard.*

The ideal, from the Gemara

Picture an English house with a front door and a front garden: - **Not** inside the front of your house, but **outside it**. - If you have a **front garden**, at the **front of the front garden**, by the street.

A question: won't it blow out in the open? **The Rabbi:** first, this is not England. But even in Israel it can be extinguished, and we'll discuss that.

A flat with no door to the street

If you live on the second or third floor and have no door opening to the public domain, **place it in the window that faces the public domain**. "This is where the window comes from."

A time of danger

ובשעת הסכנה מניחו על שלחנו, ודיו. *In a time of danger, he places it on his table, and that is sufficient.*

This is already in the Gemara. "Persecution, antisemitism is nothing new." When identifying yourself as Jewish could have consequences, lighting on the table inside the house is enough.

Where Does the Shamash Come From?

The Rabbi put the question to the class: **why does every menorah have a shamash, eight plus one?**

- "You use it to light the other candles." True, practically.
- "So we can benefit from the light." Also true.
- But why must every menorah be built that way?

The source is right here. When lighting **on the table** in a time of danger, in an age without electricity, a candle on the table is the most ordinary thing in the world. So **you need a היכר**, a sign that this is not a regular candle. You light **an extra candle** for use, so it is clear the others are for the mitzvah.

A fireplace (as Richard supplied the word) can serve as that extra light, **unless** you are the sort of household that uses the fire only for warmth and lights separate candles for light. Then it does not count, and you still need the extra light.

But that need exists only for the table. When lighting at the window or the doorway it is obvious the lights are for the mitzvah. Nonetheless, the **Me'iri**, some 800 years ago, wrote that

the custom of everyone, including his teachers, was **always** to light an extra candle, even with no intention of using it. That practice spread so it can never look as if you are lighting for light. **That is the shamash.**

What This Halacha Teaches About פרסומי ניסא

First principle: bedi'eved, the mitzvah works anywhere in the house. We see this from the time-of-danger rule.

Why, if the whole mitzvah is publicising the miracle? Because **pirsumei nisa includes your own household, and even yourself**. No distinction is drawn between a large family, a couple, or someone who lives alone. **Even home alone, lighting on the table, you light and say the berachah**: the publicity is for everyone, and for yourself.

Who Actually Lights Outside Today?

Then, says the Rabbi, if you are able to do what the Shulḥan Arukh says, **you should**: light at the entrance of your home or the front of your front garden.

"Have you ever seen anyone in England do this?"

- A class member mentioned one house with a large gas menorah in the garden, but that is more like the big public menorahs.
- Another participant: **in Miami** people do light outside their door, and in blocks of flats by the elevators.
- **In Israel**, many people light at the front of their house, or at the entrance to their block of flats, often on a little stand.

Why most of us light inside

The **Rema** (end of the seif) quotes the **Maharam of Rothenburg**: **nowadays we all light inside**, because lighting outside is a danger. The Maharam knew religious persecution firsthand: he was imprisoned for seven years and died in prison in Germany.

Today: - Contemporary poskim discuss whether, where there is no danger at all, one should go back to lighting outside. - With the surge in antisemitism, people (perhaps even in Miami that year) are understandably concerned about openly identifying as Jewish. Outside Israel, the Rabbi suggested, the next safest place may well be the **UAE**. - Some poskim say that after so many centuries of danger, generation after generation, **lighting inside has become the norm**, which is why even in places with no danger (even in Israel) some are not particular. - **Most poskim say that when you can, you should light outside.**

In England it is a combination of factors: certainly some fear, but also **wind and rain** make it very difficult to light with real fuel outdoors.

"If you're living in a place where it's practical, both from the perspective of the non-Jews around us and from the weather perspective, then really one should light outside the house or outside the front garden."

Seif 6: The Height

מצוה להניחו למעלה משלשה טפחים, ומצוה להניחו למטה מעשרה טפחים, ואם הניחו למעלה מעשרים אמה לא יצא.

The minimum: above three tefaḥim

- **A tefaḥ** is a handbreadth, about the width of a fist. The Rabbi uses **8 cm**, so **three tefaḥim ≈ 24 cm**.
- This is not in the Gemara; the Rishonim write it. The logic is the principle of **לבוד**: anything within three tefaḥim of the ground is treated as **part of the ground**, so you have given the light no height at all.

Two qualifications: 1. The measurement is to **the flame**, not the menorah's base. A decent-sized menorah standing on the floor usually has its flames above 24 cm, which is fine. 2. **Even if the flame is below three tefaḥim, bedi'eved it works**, because pirsumei nisa applies even to yourself. "What's wrong with lighting the menorah on the floor? ...The only reason you don't want to is pirsumei nisa," and that includes yourself.

The preference: below ten tefaḥim (≈ 80 cm)

Note the language: **it is a mitzvah**, commendable, to place it **below ten tefaḥim**.

Why? Above ten it looks like an ordinary candle lit for use. Between three and ten it is **high enough to be seen** but **low enough that no one would light a candle there for practical use**, so it is recognisable as a mitzvah light.

The background to this ruling: - In the Gemara, a statement that **מצוה להניחו למטה מעשרה** is brought, but its proof is rejected. - **The Rif and the Rambam** therefore do not hold of it at all: above three tefaḥim, full stop. - **The Rosh** still holds it is a mitzvah. - Normally, with the Rif and Rambam against the Rosh, the Shulḥan Arukh follows the majority. But here the **Beit Yosef** reasons: **what is there to lose?** The Rif and Rambam do not say you *shouldn't* place it below ten; they simply see no mitzvah. Since the Rosh sees a mitzvah, place it there. - The Beit Yosef concludes: **וכן נוהגים המדקדקים**, *that is what the meticulous do*, conceding that most people did not.

The Mishnah Berurah (Seif Katan 27): some argued that since we now light indoors, the ten-tefaḥim preference no longer matters. **That is incorrect**; the meticulous keep it even indoors. **But** when you light **in a window**, use the window **even if it is higher than ten tefaḥim** from the floor. And **in the synagogue** we are not particular: there we place it as high as we can, because synagogue lighting is a different kind of lighting (next week).

The maximum: twenty amot

Above twenty amot (measured to the **flame**, from the ground) the mitzvah is **not fulfilled** at all. (In the previous shiur's notes this was roughly 9.6 m.)

The Lighting Makes the Mitzvah :הדלקה עושה מצוה

ואם הניחו למעלה מעשרים אמה לא יצא, אפילו אם הורידו אחר כך.

If you lit it above twenty amot and someone pointed out it was too high, **moving it lower afterwards does not help**. You have not done the mitzvah, and must light again with the

berachah. **At the moment you light and say the berachah, the menorah must be in a valid position.**

The reverse is also true, and people often get this wrong:

"People think once you've lit the menorah you have to leave it there. That's wrong."

If you lit in a valid place, you may move it (during the week; of course not on Shabbat), from one part of the window to another, for example.

Example to come later: if the head of the household is ill in bed, one posek suggested bringing the menorah to him to light and then moving it to the window. **Don't do that.** Lighting at a bedside or table is a significant bedi'eved, relying on the time-of-danger leniency. Moving it to the window afterwards does not improve the mitzvah, because **the lighting is the mitzvah**.

A question: what if I light on the table and then move it near the door because it's more convenient? **The Rabbi:** it would work only "very bedi'eved," because at the moment you lit, you were relying on the time-of-danger leniency.

Another question: is the window really better than the front door? **The Rabbi:** "It doesn't work like that." The halacha is fixed (**לא פלוג**): by the window or by the entrance.

The Practical Hierarchy

Rank	Where	Height
1. Ideal	**Outside**, at the front of the house or the front of the front garden	Above 3, below 10 tefaḥim (24–80 cm), on the side opposite the mezuzah
2. Next best (common practice in England)	**The window facing the street**	Wherever the window is, **even if above 10 tefaḥim**
3. Next	**Inside the front door**, opposite the mezuzah	Try for **above 3, below 10 tefaḥim**
4. Last resort	**The table**	Only when there is no other option

Personal note: lighting by the door in Israel

When the Rabbi lived in Israel, with no option to light outside and no window facing the street, the family lit **inside the front door**, opposite the mezuzah, on a little stand within ten tefaḥim. In the second year, with a baby crawling around, a flame at 30–50 cm was not safe, "so then you have to use your common sense, put it higher." The ten-tefaḥim rule is a commendable mitzvah, not an absolute requirement.

Practical questions

Frosted glass: one participant had clear glass in the living-room window and **frosted glass in the window next to the front door**. Which is better? The Rabbi: **the frosted window by the front door**, since you can still see something through it and it is by the entrance, "although that's speculative." The risk is the door opening and the wind blowing out the candle.

Maor asked: can I just put it on the dining table? The Rabbi: only **in a time of danger**. You cannot decide from the outset to put it there; it is the worst-case scenario.

Someone ill and living alone, cared for by a non-Jewish carer and unable to reach the front door: the menorah may be brought to the bedside. That is the best that person can do, and pirsumei nisa includes yourself.

Seif 7: Which Side of the Doorway?

מצוה להניחו בטפח הסמוך לפתח משמאל, כדי שתהא מזוזה מימין ונר חנוכה משמאל. ואם אין מזוזה בפתח, מניחו מימין.

- Place it in the **tefaḥ nearest the left-hand doorpost** (as you enter), so that **the mezuzah is on the right and the Hanukah light on the left**. This comes from the Gemara itself.
- **No mezuzah** in that doorway: place it on the **right**, since the right is generally the preferred side.
- Lighting indoors **by the front door**: likewise opposite where the mezuzah is. **By a window** the question does not arise.

Surrounded by mitzvot

The **Geonim** add: the one lighting wears his **tallit**, so he is **completely surrounded by mitzvot**: mezuzah on the right, Hanukah light on the left, tzitzit around him.

Ḥacham Ovadia's question: we light at **night**, and tzitzit is a **daytime** mitzvah (**וראיתם אותו**, "you shall see them"). How can the Geonim speak of tzitzit at night?

The answer lies in a dispute between the **Rosh** and the **Rambam** about **כסות יום בלילה**, a daytime garment worn at night: - **The Rosh:** a garment designated for daytime **remains obligated** at night. - So the Geonim must hold like the Rosh.

Practical illustration: if one corner of your tzitzit became invalid in the evening, you might think, "It's night, I'll fix it tomorrow." **Wrong**, according to the Rosh: it is a day garment, still obligated at night, and you would be wearing a four-cornered garment with only three valid corners. **In practice we are stringent both ways.**

Hiddur and the tallit

This ties back to last week's theme of **beauty**. When the Gemara teaches **הידור מצוה** from **זה אלי ואנוהו** ("This is my God and I will beautify Him"), the example it gives is **טלית נאה, ציצית נאה**, a beautiful tallit and beautiful tzitzit. "There's a whole thing coming here with beauty, and what beauty really means." The Rabbi has a full shiur on this, and hopes to return to it nearer Hanukah.

The Rema: today we light inside

> **ומיהו בזמן הזה שכולנו מדליקים בפנים...** *But nowadays, when we all light inside*, we need not be so particular about the tefaḥ nearest the doorway, though it is still good practice.

For households with several menorahs (Ashkenazim): spread them out ("one here, one there"), but **not** where you would normally have lights for use, such as by the kitchen counter where you cut vegetables or cook. There it looks as if you lit for light.

Flats Above Twenty Amot

The Mishnah Berurah (Sha'ar HaTziyun): if your flat is **higher than twenty amot**, you should **not** light by the window. - Lighting at the window is aimed at **the street outside**, and that is

above twenty amot, which does not work. - Lighting **inside your front door** measures the twenty amot **from your own floor**, so it is valid.

"Some say" that if there are high-rises opposite you, people across the way at your level can see your window, so it is fine. **The Rabbi is not convinced:** pirsumei nisa is for **everyone walking down the street**. "Who are you lighting for? For the people opposite you? **Light for the people in your house.** Light in the entrance of your house, where more people in your house will see it."

Summary: Putting It All Together

1. **Seif 3:** a candle with **two distinct flames** counts as two, both for mehadrin and for two separate households.
2. **Seif 4:** a bowl with many wicks counts **only if the flames stay separate**. Merged flames are a **bonfire** and do not fulfil even the basic mitzvah. This is why **menorahs are straight, not round**. Keep wax candles from melting together.
3. **Seif 5:** the Gemara's ideal is **outside**, at the front of the house or front garden; a flat without a street door uses the **window to the street**; in danger, the **table**.
4. **The shamash** originates in the need for a sign when lighting on the table. The Me'iri records that the custom became to **always** light an extra candle.
5. **Pirsumei nisa includes yourself.** That is why the mitzvah works bedi'eved anywhere in the house, even for someone alone.
6. **Today** most of us light inside, as the Maharam of Rothenburg recorded, because of persecution and, in England, the weather. Most poskim say **light outside where you safely can**.
7. **Height:** the flame **above 3 tefaḥim (~24 cm)** (bedi'eved even lower is fine), preferably **below 10 (~80 cm)** (the Rosh / Beit Yosef, "the meticulous"), and **never above 20 amot**.

   הדלקה עושה מצוה: it must be in a valid place **when you light**. Moving an invalid menorah afterwards does not help; moving a valid one is permitted.
9. **The hierarchy:** outside, then the street-facing window (even above 10 tefaḥim), then inside the front door opposite the mezuzah (preferably 3–10 tefaḥim), then the table only in danger.
10. **Seif 7: mezuzah on the right, menorah on the left**, surrounded by mitzvot. No mezuzah: the right side.
11. **Above twenty amot:** light **inside your front door**, not at the window.

Coming Up

Next week: **the synagogue menorah**. Its origins, the reasons for the custom, its placement and timing, and whether a berachah may be said on a custom.

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